Transport Planning, Development & Streetworks Management
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Transport Development Management

Memo

To: Planning Services
From: Transport Development Management
Date: 16th March 2022

Application Number: S/COND/22/0315

Proposal: Discharge of condition 9 (Character Area Design Code) from Outline Planning Permission S/OUT/13/1555 - Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road.

Location: Land North Of A420 Eastern Villages

Ed,

I refer to the above condition compliance application.

Condition 9:

A Design Code relating to each Character Area as defined in the Strategic Design Code, shall be submitted to and be approved in writing by the Local Planning Authority prior to the submission of the first reserved matters application within that Character Area. Each Design Code shall be in accordance with the Strategic Design Code approved pursuant to condition 8 above and shall include detailed guidance for that specific Character Area in respect of:
a) The overall vision and character of the character area, and mix of uses;
b) How the character and identity of the development parcel will be established and strengthened through consideration of the public realm, streets, green infrastructure, retained and proposed planting, open spaces and play areas;
c) The form of the development, with reference to densities, block types, building types, building heights, the palette of materials, recycling and waste management, street furniture, inclusive design;
d) The sequencing, hierarchy, typology and treatments of all elements of the movement network (including a proposed route to the eastern boundary to facilitate a highway link into Nightingale Wood within the appropriate Character Area Code);
e) Principles of traffic management, parking provision (including for the 5no. 'car share scheme parking spaces' across the site) and servicing to all properties;
f) The form of movement connections from within housing parcels to connect to the wider pedestrian/cycle network identified on 'Indicative Access and Movement Plan' (LHL005/162 rev P) that provide connectivity to facilities and services; and
g) Any alterations to public transport routes to accommodate the defined phases of development within the site.

Each reserved matters application shall be accompanied by a checklist to demonstrate where the development accords with the relevant approved Character Area Design Code.

The application form states that this is a part discharge of condition and specifies this submission for Character Area 1 – Marston Gate and Nightingale Corner.

Reference is made to the approved Strategic Design Code, however, at the time of writing the SDC has not been approved. Therefore comparisons with an approved SDC cannot yet be made. This affects a number of sections within this document.

It is unclear what provision is made for pedestrians and cyclists along Old Vicarage Lane, appreciate this may have been resolved at Outline stage.

As raised before with the Strategic Design Code, the use of colours are not diverse enough to be able to determine the difference between the items being illustrated on plans within the document. The Character Area Regulating Plan on page 17 is a plethora of meaningless yellow lines.

Access locations can only be deemed indicative until design details provide evidence of safe and suitable locations and layouts.

Page 20 – It is unclear why a hierarchy of roads is established to then jump a level (primary to tertiary omitting secondary). Transitions between these streets will need to be very clear.

Diagrams on pages 20, 21 & 23 – These refer to the Primary Street and the SDC. As the SDC is not yet approved, it is not appropriate to comment on this section at this time.

The example of Red Multicolour block paving is not acceptable on trafficked routes. Block paving on lightly trafficked routes will be 45° herringbone pattern. It is also worth noting that a block paved surface needs to be deeper due to the thicker surface layer, 130mm (block and sand bed) instead of 50mm tarmac, so is less likely to meet SBC or developer carbon reduction policies.

Paragraph 4.4.1 shared surfaces are acceptable, subject to clarity on the route vulnerable users will follow to safely negotiate their journey.

Paragraph 4.4.5 refers to areas not exclusively serving as parking areas. Parking is required to be well located to the property it serves, for example unloading a supermarket shop with small children. Parking will also need to be well located to the property it serves to provide EVCPs.

Section 4.5 Vehicle Parking – the level of provision makes no reference to the Council's Adopted Parking Standards. Development will be expected to comply with the Parking Standards current at the time of determination. A number of the other elements specified are welcomed.

Shared Parking –

- Rear parking is not acceptable. People are like water they park as close to their front door as possible. There are numerous examples across the Borough where this has occurred which has had resulting problems for service, delivery and public transport vehicles, as well as for residents themselves. Rear parking is not acceptable. Parking must be located between the closest vehicle access and the nearest door to the dwelling.
- Accesses at 4m wide will only work as single way working. Access through a FOG is not achievable, but access through a drumway could be.
- Paragraph 4.5.19 is unclear. Crossovers do not cross footpaths. The document has said long sequence of parallel parking is to be avoided, but still permits a run of 6 spaces, 4.8m would not be sufficient to adequately access all 6 of those spaces.

Walking and Cycle Movement – This section will need to refer back to the details within the SDC once it has been agreed. There are references here to a number of points that are under discussion with regards the SDC.

- Paragraph 4.6.5 – What is a tertiary footpath?
- Paragraph 4.7.1 – Where cycle parking is not accommodated within the garage, secure and sheltered cycle parking will be provided per dwelling, in accordance with the adopted Parking Standards. Responsibility for providing cycle parking lies with the developer and not future residents.
- Cycle parking solutions such as that shown in the middle picture on page 28 are only acceptable where there is a hydraulic mechanism to support the raise and descent.
- Short term cycle parking should be covered.

Public Transport and Shared Mobility

- The comments made by the bus companies operating within Swindon, need to be incorporated within all the Design Codes. What measures are proposed for interim bus service provision?
- It is assumed that paragraph 4.8.2 refers to the 5 Car Club spaces, but this is not clear and should be.

Access and Parking

- Page 34 there are some details on the sketch plans that are not clear, what are the lines over the carriageways? What do the different colours within them represent?

Public Realm Treatment

- Surface materials will always need to comply with the requirements of the Equalities Act. Surface materials within public highway or areas to be offered for public highway will need to comply with LHA requirements.
- The legend on page 38 labels items 2 and 3 as path. Item 3 is illustrated as a turning head, and in another location what appears to be a raised table, neither of these are paths.
- Item 12, a pedestrian crossing, is shown on a radii, this is not permitted. The obvious desire line is straight, but the layouts indicate a number of characteristics that would prevent the crossing being located on the desire line. The wider layout needs to consider all routes through and across the site. Landscaping also needs to reflect likely desire lines to avoid new vegetation being destroyed as people push through on their desire line.
- Some of these comments are the same for pages 46, 54 and the landscape proposals.

The Primary Street

- Paragraph 5.3.7 – the simple act of alternating the side of the verge does not automatically create a traffic calming feature. No illustration of this appears to be included, despite the annotation on the plan on page 41.
- Tree Strategy – has the size and type of tree determined the soil volume required to determine the width of the verge required for the tree to be sustained outside of the angle of repose (the road construction) and has this width been reflected within the designs included within the SDC and CADC? This applies to all locations where trees are proposed within the street scene.

Parkland Edge

- Where is Sandy Lane?
- What is a semi-private access road? (5.4.9 & 5.4.11)
- How limited is 'limited on street parking'?
- The excerpt plan at the bottom of page 5 is a perfect example of different routes backing onto each other with no connections or permeability.

Page 56 – why is parking provided '… or on street'?

Page 57 – Waht is meant by: 'Access to property frontages are to be provided for pedestrians and cyclists, and vehicles where it is necessary to form part of a connected network'?

As currently submitted this CADC is not condition compliant.

Please note that the comments made here represent Officer opinion and cannot be seen to prejudice Swindon Borough Council's formal determination in relation to any application or planning matter.

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